

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-002
Amendments to Title 5 of the Chickasaw Nation Code
(Jury Selection)

PASSED

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for juries and desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approved that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 5, Chapter 2, Article L, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red and deletions are stricken through):

SECTION 5-212.16

**USE AND MANAGEMENT OF ELECTRONIC JURY
MANAGEMENT SYSTEM.**

A. In lieu of any other jury selection procedures now provided by law, the Court Clerk of the Chickasaw Nation, may utilize an approved electronic jury management system (JMS) authorized by the Chief Justice of the Supreme Court of the Chickasaw Nation for the random selection of jurors and the general administration of the jury process.

B. The Court Clerk of the Chickasaw Nation shall manage the jury selection process under the supervision and control of the Chief Justice of the Supreme Court of the Chickasaw Nation. In managing the jury selection process, the Court Clerk and Chief Justice are authorized to delegate duties to their staff and to utilize the electronic processes, random selection functionality, and data processing services of the authorized JMS, as may be necessary in the jury selection and maintenance process.

C. The District Court Judge of the Chickasaw Nation shall, more than thirty (30) days prior to each term of court, determine approximately the number of jurors that are reasonably necessary to meet the needs of the District Court for each jury term and shall order

the drawing of that number of jurors, either all at one time or at periodic intervals, in advance of each term as he or she deems proper.

D. The Court Clerk or Chief Justice may utilize the JMS to randomly draw a sufficient number of names from the source list provided by the appropriate source pursuant to Section 5-212.1(B), to satisfy the number of jurors ordered by the judge, including a margin of extra names sufficient to compensate for the estimated number that will be unavailable or ineligible. The names drawn shall comprise the general panel of jurors from which jurors are selected for service in the District Court during the period for which they are designated to serve. The Court Clerk or Chief Justice and its staff shall not disclose, copy, or permit any person to copy any general panel jury list or any portion thereof except as provided in Section 5-212.17.

E. The Court Clerk or Chief Justice may utilize the JMS to prepare the summons for jury service and shall cause the same to be mailed to every person whose name is drawn for the general jury panel. At the option of the Court Clerk or Chief Justice, jurors' summonses may be mailed by the clerk's office or by a commercial mailing service. The court may utilize an automated address verification process to avoid mailing summonses to incomplete or invalid addresses or to persons who no longer reside in the jurisdiction.

F. Use of an approved electronic JMS shall not be grounds for a challenge to a juror or a panel based on a material departure or irregularity from the requirements prescribed by law. Whenever the court utilizes the approved JMS to randomly select and sequentially order juror names during any step in the jury selection process, the laws relating to the selection of jurors by a selection drum, including those requirements set from Section 5-212.2 through Section 5-212.15 shall not apply.

G. The Court Clerk or Chief Justice may utilize the JMS for creation and maintenance of all records and documents necessary to summon, qualify, manage, and pay jurors for service and may maintain jury records in electronic format utilizing the data processing methods which are provided in the JMS.

H. The District Court may provide electronic resources, including but not limited to an automated telephone system and a website, for jurors to obtain information about their jury service and submit information to the court.

I. The District Court may utilize the JMS to prepare and mail juror questionnaires and may provide for jurors to answer juror questionnaires either by mail or by the court's website.

SECTION 5-212.17

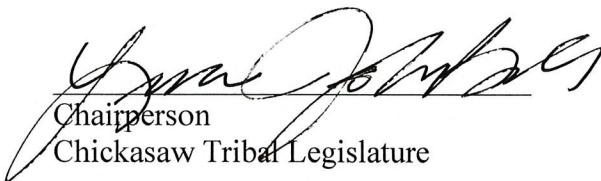
DISCLOSURE OF PERSONAL INFORMATION ABOUT JURORS.

A. Persons serving as jurors during a trial shall not be asked or required to give their complete residence address or telephone number in the presence of the defendant.

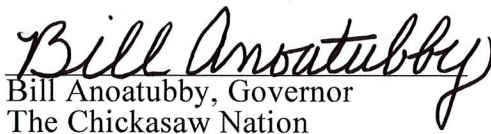
B. Names and personal information concerning prospective and sitting jurors shall not be disclosed to the public outside open court, except upon order of the court. A request for disclosure of jurors' names and personal information shall be made in writing directly to the judge. The court shall order jurors' names and personal information to be kept confidential unless the interest of justice requires otherwise.

C. Names and personal information concerning prospective jurors may be provided to the attorneys of records after the general panel jurors have been selected and summoned, unless otherwise directed by the court. The names and information will be provided in written form only, hereafter referred to as "the jury list". The attorneys shall not share the jury list or information contained in the jury list except as necessary for purposes of jury selection. Following jury selection, the attorneys shall return the original jury lists and any copies to the court. Counsel shall be under a continuing duty to protect the confidentiality of juror information.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on December 15, 2023, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 15 2023

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-002
Amendments to Title 5 of the Chickasaw Nation Code
(Jury Selection)

Explanation:

This resolution amends the Chickasaw Nation Code to allow for the Chickasaw Nation District Court to utilize an electronic jury management system for selection of jurors for criminal and civil jury trials within the Chickasaw Nation District Court. This resolution also provides for a duty to protect juror information by court personnel and attorneys of record.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature